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California Democrats back Gavin Newsom’s push to write gun control into US Constitution

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SACRAMENTO, Calif. — California Democrats are backing a campaign by Gov. Gavin Newsom to amend the United States Constitution with gun ownership age limits, universal background checks and an assault weapons ban.

Lawmakers on Monday introduced a joint resolution that would support Newsom's proposed gun control amendment to the U.S. Constitution. Newsom started making his case for the amendment in June, through his Campaign for Democracy political action committee.

Assemblyman Reggie Jones-Sawyer, D-Los Angeles, and Sen. Aisha Wahab, D-Hayward, authored the legislation, which calls for a constitutional convention to produce an amendment that would allow states and local governments to limit firearm possession.

It would also raise the legal age for gun ownership to 21, require universal background checks, impose minimum waiting periods and institute an assault weapons ban.

Newsom has renamed his effort the "Right to Safety Amendment" to avoid confusion with the proposed Equal Rights Amendment.

Two-thirds of states must pass similar constitutional convention legislation for the amendment to be successful. None of the 27 amendments have come from the convention process, and constitutional scholars have said the governor's effort is "essentially impossible."

But that has not deterred Newsom, who told reporters on Friday he "really (believes) this is going to happen, that we're going to get enough states."

The U.S. Supreme Court in June struck down stringent concealed carry regulations and limited states' abilities to restrict firearm possession with its New York State Rifle & Pistol Association Inc. v. Bruen decision.

California lawmakers have a handful of state gun control bills in the Sacramento pipeline this year. But Newsom still wants to see the state's efforts lead to national change.

The Legislature last year failed to pass a bill to shore up the state's concealed carry permitting in light of the Bruen decision. Sen. Anthony Portantino, D-Burbank, this year brought the measure back for another try, and Newsom has already vowed to sign it.

A different bill from Assemblyman Jesse Gabriel, D-Woodland Hills, would create an excise tax on guns and ammunition to fund violence prevention efforts.

President Joe Biden this year has pushed for a new national ban on assault weapons after 1994 restrictions expired in 2004. But Newsom said he recently told Biden those efforts may not be constitutional in light of the court's stance.

"This Supreme Court is that bad," Newsom said. "The Bruen decision was that bad. When I say code red, this is code red. California's led the nation on common sense gun safety laws."

"And we have the receipts," he added. "The efficacy of those laws is demonstrable. The data bears out — California's gun death rates significantly declined since California's leadership in this space."

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